SNEHA CHILD PROTECTION POLICY

Dear SNEHA Team,

As you know, SNEHA has been working with children for the last few years through all our programs, from infancy to adulthood, trying to improve their health, nutrition and safety.

We are now introducing a Child Protection Policy(CPC) to demonstrate our intent to protect the rights of children and also to have consistent guidelines across the organization, when dealing with this vulnerable target group.

I request you to read through the policy and understand the principles of child protection, the laws that protect children and guidelines for reporting cases of child abuse.

In case of any clarification on these guidelines, you may contact your Program Director or Associate Program Director or write to CPC@snehamumbai.org

After you have read and understood this policy, you are requested to sign the **attached** Self Declaration form of this Policy and submit it to HR within 30 days of receipt of this communication.

Vanessa D'Souza

CEO

Date: 1st August, 2021

CHILD PROTECTION POLICY

Summary/ Purpose

This Child Protection Policy is SNEHA's statement of intent that demonstrates SNEHAs commitment to protecting the rights of children. SNEHA is committed to ensuring the safety and development of all children under its care either coming in contact directly or indirectly irrespective of their caste, creed, gender or religion. This policy has been created to clarify and mandate everyone in the organization or outsiders, stakeholders and visitors who come in contact with us to ensure maximum protection of children and consider that child abuse and discrimination is not acceptable to SNEHA.

Our vision is that children grow up with greater freedom and are safeguarded from all forms of violence; do not undergo neglect or any form of exploitation, and those who experience violence benefit from more appropriate care, support and access to justice needed to ensure their physical, mental and social well-being.

SNEHA will follow the guidelines laid down by the Government of India in protecting children from abuse, neglect and exploitation

As per The Constitution of India, Article 15(3), State must make special provisions for children. Article 39 of Part IV of the Constitution asks the State to direct its policy towards securing (among other things), that children are not abused; not forced by economic necessity to enter avocations unsuited to their age or strength; and that they are given opportunities to develop in a healthy manner and in conditions of freedom and dignity, protected against moral and material abandonment. Further, the UN Convention on the Rights of the Child (UNCRC), adopted by the UN General Assembly in 1989 and ratified by India on 11th, December,1992 delivers universal recognition of children's rights to its member nations.

Additionally, there are several provisions made by the Indian legislature under laws like Juvenile Justice (Care and Protection of Children) Act, 2015, Protection of Children from Sexual Offences Act (POCSO), 2012 and the amendment made to the Indian Penal Code.

This document outlines our beliefs, policies and steps to adhere to keep our commitment to protect all children.

Definitions under the Child Protection Policy

- **Child-** A child is defined as any person under the age of 18 years

- **Child Abuse-** is defined as all forms of physical abuse, emotional ill-treatment, sexual abuse and exploitation, neglect or negligent treatment, commercial or other exploitation of a child and includes any actions that result in actual or potential harm to a child.

- **Child Neglect-** Child neglect is the failure to provide for shelter, safety, supervision and nutritional needs of the child. Child neglect may be physical, educational, or emotional neglect:

- **Physical neglect** includes refusal of or delay in seeking health care, abandonment, expulsion from the home or refusal to allow a runaway to return home, and inadequate supervision.

- **Educational neglect** includes the allowance of chronic truancy, failure to enroll a child of mandatory school age in school, and failure to attend to a special educational need.

- **Emotional neglect** includes such actions as marked inattention to the child's needs for affection, refusal of or failure to provide needed psychological care, spouse abuse in the child's presence, and permission of drug or alcohol use by the child

Forms of Child Abuse and how to identify it (Please see Annexure 1)

Our Beliefs

- All children have a right to protection, safety, health and education.
- All children have a right to a life free from abuse. Abuse in any form, is a human right violation.
- All children are vulnerable to abuse and neglect and we have to take specific steps to protect the children under our care from the same.
- We must take all measures to protect children under our care from abuse.
- All children have a right to a life free from discrimination. We will not discriminate among children on the basis of religion, caste, language, age, gender, place of origin, socio economic status or relationship with staff
- We must work jointly with the family, community and the concerned stakeholders for the best interest of the child

Scope of the Child Protection Policy

This Child Protection Policy applies to everyone working with SNEHA or associated with SNEHA.

- **SNEHA staff** - These include all the staff members who are full-time employees or consultants

- **SNEHA Associates** -These include board members, volunteers, community volunteers, sponsors, consultants and contractors. Also the staff and/ or representatives of partner organizations and local governments who have been brought in to contact with children or a party to SNEHA child sensitive data while working for or with SNEHA
- **SNEHA Visitors** -These include donors, journalists, media persons, researchers, celebrities who may come in contact with children through SNEHA

Ensuring our commitment

To ensure the implementation of this policy:

SNEHA Human Resources Unit will be mainly responsible for the following functions:

- induct staff members on the child protection policy in understanding their role in identification, intervention and referral.
- Ensure that all its members will sign up and abide by the policy
- Ensure that recruitment procedures include checks on suitability for working with young people
- Create access to the policy for all staff members and associates
- Prominently display contact details for reporting child abuse across all its offices and community centres
- Will conduct regular workshops for better understanding and effective implementation of the policy
- sever all relations with any SNEHA associate or visitor or volunteer who has proven to have committed child abuse.
- ensure that children with any kind of disability will not be discriminated or stigmatised.
- inform parents or guardians in case of abuse

Code of Conduct

Expected behaviours and actions:

Program Directors and Associate Program Directors will be responsible to create the norm of expected behaviours by their staff towards any child that they come in contact with.

All employees at SNEHA are required to:

- Be aware of situations which may present risks and appropriately manage it
- Plan and organize the work and the workplace to minimize risks
- Be visible to others when working with children whenever possible
- Create and maintain a non-defensive attitude and an open culture to discuss any issues or concerns
- Foster a culture of mutual accountability so that any potentially abusive behaviour can be challenged
- Develop a culture where children can talk about their contacts with staff and others openly
- Respect each child's boundaries and help them to develop their own sense of their rights as well as help them to know what they can do if they feel that there is a problem

Prohibited behaviour and actions:

The Programs and Domains will ensure that all their team members do not demonstrate any prohibitive behaviour and actions as listed below:

Do not

- Use language or behaviour towards children that is inappropriate, harassing, abusive, sexually provocative, demeaning, intimidating, offensive, discriminatory or culturally insensitive
- Use any form of corporal punishment on children
- Place a child at risk of harm or abuse and do not harm or abuse any child physically, emotionally or sexually.
- Share with or show children (electronically or in any other form) inappropriate content including pornographic material or material encouraging crime, violence, terrorism, racism, sexism, self-harm, suicide, cruelty and gambling
- Develop, induce or support physical or sexual relationships with children, in any way
- Use or encourage the use of alcohol, drugs, cigarettes or other intoxicating substances while interacting with children and from providing such intoxicating substances to children
- Develop any form of relationship or arrangement (financial or otherwise) with children which could in any way be deemed to be exploitative or abusive.
- Employ children as domestic workers at their home or at their relatives' home regardless of any prior consent of the guardian and/ or the parent.
- Start any treatment without parent's consent, unless there is an emergency situation whereby delay in treatment will be detrimental to the health of the children.
- Solicit signatures or consent of children under the age of 18 without prior consent of the parent.
- Use images of children on SNEHA or other websites or on any other promotional materials of SNEHA
  -without obtaining written permission from the parent(s)/guardian(s) of the child and without the child's consent.
  - which are indecent, disrespectful, present children as victims.
  - where the child is not adequately clothed and the stance could be interpreted as sexually suggestive from any angle.

Some examples include-

- Spending excessive time alone with them especially in closed spaces like anyone's or child's home
- sharing a bed with them and or have then stay overnight
- touching them inappropriately
- kissing or cuddling or touching in an inappropriate, unnecessary or culturally insensitive way
- Intentionally humiliate, belittle or degrade
- Hit or otherwise physically abuse
- use language or gestures that harm the dignity or self - esteem of the child
- taking the child away from the parent or guardian without the prior written permission from the parent or guardian
- disclosing the child's personal and physical information on any media platform that could be used to identify their location within a country

Redressal of Policy infringement

There are two possible scenarios under which the Child Protection Policy can be violated. The guidelines set out in this section will govern the reporting and redressal of each of the respective scenarios:

Scenario 1: Where the child who is allegedly violated is from the communities where we work and the alleged offender is ***anybody other than a SNEHA staff member***
Scenario 2: Where any child who is allegedly violated by *a SNEHA staff member*

Scenario 1

- In case of the first scenario the concerned SNEHA staff must ensure that the person who complains or the SNEHA staff member himself/herself has to reach out to SNEHA's Program on Prevention of Violence against Women and Children (PVWC) team or they can call on SNEHA's Crisis helpline or One Stop Crisis Center (details available on SNEHA's website www.snehamumbai.org) and they will follow their existing protocols already in place (Please see Annexure 2). The PVWC team will keep SNEHA's Child Protection Committee, set up for the purpose of Child Protection Policy, in the loop and updated on the steps taken especially in grievous cases.
  If a SNEHA volunteer is the subject of an allegation of child abuse, that volunteer will be asked to withdraw from their work until an investigation has been completed. In case of a complaint of abuse by a visitor, the person will be asked to leave the premises with immediate effect. In both cases, it should be made clear that suspension does not imply guilt but rather protects all parties whilst an investigation is undertaken

Scenario 2

In case of violations of the policy by SNEHA's staff member by not following any of the terms as specified herein the following steps will be undertaken immediately:

- Any staff member who becomes aware of the violation will communicate in writing to the **Child Protection Committee (CPC@snehamumbai.org)** within SNEHA, within 24 hours of becoming aware of the violation
- It is not the responsibility of the person first hearing or encountering a case of alleged or suspected abuse to decide whether or not abuse has taken place; it is their responsibility to immediately report the concern.
- The reporting should focus on: - Evidence that the Child Protection policy has been violated with relevant dates and potential /actual risk to the child/children
- The concerned staff member will be asked to take leave from their duties on full pay until an investigation has been completed.
- The child will always be given the benefit of doubt.
- Confidentiality regarding these records will be scrupulously maintained and information will only be released to the supervisor of the staff member concerned or to those in positions of authority externally who have reason to need it for the protection of children.
- Depending on the gravity of the situation, If the complaint falls under the Protection of Children from Sexual Offences Act, 2012 (POCSO), then the Child Protection Committee will refer the case to the PVWC team, who will help the guardian of the child to file an official complaint as per the provisions of the law at the earliest. Mandatory reporting in POCSO cases will be followed and PVWC team will coordinate with the police and local authorities.

The Child Protection Committee will be informed when the case is filed and they will also ensure that there is no attempt to cover up the incident or influence the child's parents/guardian or other authorities

- In case of abuse falling outside the ambit of POCSO, the Child Protection Committee will conduct an inquiry following the principles of natural justice
- Once the Child Protection Committee has knowledge of the violation of the policy, it will:
  1. Ensure that the child is removed from any imminent danger immediately by preventing contact with the person involved to safeguard the child's safety
  2. Organize a meeting within 24 hours to plan the next course of action.
  3. Will within three days conduct a risk assessment of the reported concerns and inform the relevant authorities as appropriate who will ensure that child is provided care and protection.
  4. Will liaise with a partner NGO to reassure the child that the problem will be attended to and he/she is safe and protected.
- The Committee will then conduct an inquiry. The process to be followed in the inquiry remains the same as under the POSH Act,2012 however much more sensitivity will be required and the child will share his experience only with one designated expert in the committee and not to the entire committee. The entire process of the inquiry has to be documented similar to as is done under POSH. (detailed and precise, focusing on facts and statements made rather than speculation). The time lines will also be as per POSH except for the initial meeting and risk assessment time line mentioned above.
- The Child Protection Committee will also take the support of or refer to the established Child Welfare Committee (CWC), Juvenile Justice Board or Childline depending on the requirements of the case
- Depending on the gravity of the violation, on verification of the complaint, legal process will be instituted by contacting the local police and /or disciplinary action will be taken including removal from service.
- In case, violation is not verifiable through questioning, the staff member will be removed from that station of duty and be put on probation and watch for a period of 3 months, during which he/she will be retrained rigorously and monitored intensively.

The Child Protection Committee of SNEHA will constitute- A chairperson – (senior staff member working with children and adolescents), one external NGO member committed to the cause of child rights and three members from SNEHA staff. It's preferred that one member should be an expert on child psychology and have experience working with children and one member could have a background on handling cases of children along with the police and CWC.

Responsibilities of SNEHA related to the inquiry

- Appointment of the Child Protection Committee as per the requirements, every three years
- Provide the necessary resources and direction for capacity building of the SNEHA staff at the time of induction and regular refreshers whenever deemed fit . Declaration given below to be signed by all staff.

- Assist the Child Protection Committee to maintain case files and records pertaining to the complaints/incident and maintaining confidentiality

Annexure 1- **Forms of Child Abuse and how to identify it**

Violence or abuse may take place at homes, schools, orphanages, residential care facilities, on the streets, in the workplace, in prisons and in places of detention.

According to WHO, child abuse or maltreatment constitutes all forms of physical and/ or emotional ill-treatment, sexual abuse, neglect or negligent treatment or commercial or other exploitation, resulting in actual or potential harm to the child's health, survival, development or dignity in the context of a relationship of responsibility, trust or power.

According to UNICEF violence against children can be physical and mental abuse and injury, neglect or negligent treatment, exploitation and sexual abuse.

Abuse can take the following forms, which includes but shall not be limited to the following:

Physically hitting, pinching, scratching or harming the child in any way;
Touching the child inappropriately especially on their private parts;
Bathing or undressing a child unless he/she has dirtied clothes;
Any sexual contact, whatsoever;
Forcing the child to do anything against his/her wishes unless what the child is resisting is harmful to him/her;
Using raised voices against a child;
Using language that undermines the dignity or self-esteem of a child;
Using abusive language against a child or in the presence of children;
Photographing children without the prior consent of their parents or guardians;
Photographing a child naked or with minimal clothing.

HOW DO WE IDENTIFY ABUSE AND NEGLECT? WHAT ARE THE SIGNS[1]?

If any of the following signs and symptoms are observed, further investigation is to be carried out by the SNEHA program officer:

1. Failure to Thrive
2. Dirty/hungry children
3. Medical neglect
4. Body Odour
5. Lack of dental hygiene
6. Inadequate shelter
7. Safety issues
8. Lack of parental response
9. Excessive sleeping
10. Begging for food
11. Attention seeking behaviours

[1] DR.BEULAH SHEKHAR, Coordinator cum Reader, Victimology & Victim Assistance, Manonmaniam Sundaranar University, Tirunelveli, Tamil Nadu

12. Excessive absences from school
13. Child / caretaker abusing drugs or alcohol
14. Absenteeism
15. Speech disorders
16. Motor coordination delays
17. Emotional delays
18. Signs of unexplained fear or panic
19. Habit disorders; sucking, biting, rocking
20. Conduct disorders; antisocial, destructive
21. Behaviour extremes
22. Overly adaptive behaviour
23. Attempted suicide or self-destructive behaviours
24. Low self esteem
25. Problems with attention
26. Pain and/or bleeding in anal or genital area
27. Difficulty walking, sitting
28. Displays age-inappropriate play with toys, self or others
29. Inappropriate knowledge about sex
30. Child reports sexual abuse
31. Venereal disease or pregnancy

1. **Annexure 2: SNEHA Protocols** where the child who is allegedly violated is from the communities where we work and the alleged offender is anybody other than a SNEHA member

Key aspects which are critical:

1. Ensure confidentiality at all times (even within the team only the relevant Community Organisers (COs), Program Officers (POs) and Program Coordinator (PC) need to know the details of the survivor besides the Counsellors, COs and PC of the Program on Prevention of Violence against Women and Children (PVWC)).
2. Ensure that the COs, POs, PCs are aware of the law and every action taken by them is as per the protocols.
3. Believe the child.
4. Safety plan for the child has to be ensured.
5. All actions have to be carried out expeditiously and there should be minimum delay at every stage.
6. Revealing the incident to the guardian's/family members (an adult the child trusts most, as long as she/he is not the perpetrator) should be done only by the PO and not by the CO. If the CO has a good rapport with the guardian's/ family members, the CO to accompany the PO when the same is done.

I. Protocol for handling cases of Child Sexual Abuse (CSA)

Protocol to be followed by the CO

Scenario 1 - *If the child directly reports to the CO*

1. Ensure that the place where the child is sharing is private and the child feels safe and secure
2. The community organizer should listen patiently to the client, finding out the details of the incident and the sequence of events: when, where, who and how.
   (At such times since the child has shown confidence and trust in the CO it will not be appropriate to delay by waiting for the counsellor because of the sensitivity of the issue the child may change his/ her mind and may get influenced easily)
3. Provide the child assurance that we believe him/her and will take preventive steps to ensure that henceforth he/ she is safe. The child should also be given the message that it is not his/her fault and what the person has done is wrong.
4. Ask him/ her who they have already confided in to know who the child trusts.
5. If the incident is very recent and the child has not yet had a bath, inform the child not to bathe (especially if there has been sexual assault involving any type of penetration) as that is important to ensure justice.
6. The CO should assure the child that what he/ she has reported will remain confidential but what the perpetrator has done is wrong and we need to report the matter to ensure that he does not repeat the same with another child.
7. Inform the child that he/ she is part of an organization SNEHA and so he/ she will share the matter with other staff of SNEHA to help him further.
   (This is because we are assuring child of confidentiality and reporting to other SNEHA staff which he/she needs to know. If the child is older we can tell the child that we will be reporting

to other SNEHA staff members who will assist in ensuring that we get justice/ punish the wrongdoer, etc.)

8. The CO should then inform the concerned PO about the case
9. The PO should then ensure that the CO has all the relevant details and contact the PVWC counsellor
10. The PVWC Counsellor and concerned PO should jointly meet the child's parents or guardian (need not wait for the father to come home)
11. The PVWC Coordinator and area Coordinator to be informed about the details of the case
12. Once the case is informed to the PO and/or PVWC Counsellor, the CO then has to provide support as and when required and under the directions of his / her seniors.
13. Thereafter the CO to be observant and report any community dynamics related to the case to the concerned PO

Scenario 2 -*If the CO finds out about the incident from a teacher/ helper/ relative/ neighbour and not by the child directly*

The ground rule in such cases is that the CO should get all the details but not directly go to meet the child alone. The CO should also never report to the child's guardians directly and wait for the PO or PVWC Counsellor to do it.

1. The CO should listen to the informant and find out all the details of the incident and the sequence of events: when, where, who and how. If the incident is very recent and the child has not had a bath etc. (particularly when there is some form of penetrative abuse)
    - provide that information that the child should be told not to have a bath immediately
    - Report the matter to the concerned PO who will report the matter to the PVWC Counsellor. However, if that matter is reported out of office hours in the night etc. then there should not be a delay and the CO should inform the seniors telephonically and without delay ensure that the medical examination of the child is done at the nearest municipal hospital expeditiously

    If the incident is not recent and days have passed and the child has already had a bath, then
    - immediately report the matter to the concerned PO who will then report the matter to the PVWC Counsellor
    - The COs role in this case will be restricted since the urgency is not there and he/she can only play the supporting role depending on the facts and circumstances of the case

Protocol to be followed by the PO / PVWC Counsellor

(At all times the Counsellor may not be available so PO/ Counsellor has been mentioned in those places where PO can also perform the task in the absence of the Counsellor however it is understood that preferably the Counsellor has to have primary responsibility. If the Counsellor is unavailable, then the PO should not delay and should proceed.

Their protocol will also differ depending on the time gap between the occurrence of the incident and the reporting

If the case has been reported immediately after the incident

1. The PO and or Counsellor to approach the immediate guardian and share that they have come to know about the incident and would like to help. Inform her/ him why it is so

important to report the incident and provide supportive and legal counselling. Informing them about POCSO, 2012.

2. If the case is reported by the child's family like mother, The Counsellor to fill the intake sheet and take only the first page (application in writing from the mother) due to the importance of avoiding delay in medical check-up.
3. PO/Counsellor to request for permission to speak to the child if the Counsellor feels it is required in that case (Only if the Counsellor feels it is required, for e.g. Counsellor feels that the child has not shared all the details to the confidant and she may require to try and get additional information from the child survivor)
4. If permission received the Counsellor to talk to the child alone or in the presence of his/ her guardian (depending on the age of the child, sensitivity of the situation. This will be brief and only for the purpose of getting the necessary information. At this point the Counsellor will realize if the particular child survivor requires additional future counselling or no (*guidelines for the same below*)
5. The Counsellor/PO has to ensure that the medical examination of the child is carried out as soon as possible, so the child should be taken to the nearest municipal hospital for a medical check-up. The child to be accompanied by one counsellor/ PO. The person accompanying the child must ensure that the medical facility does not delay the medical check-up and ensures that the police are contacted immediately for registering a case under POCSO, 2012
6. The child's guardians (or that adult the child trusts) will be encouraged and supported to take legal action. The Counsellor will evaluate the situation and educate the guardian on existing legal provisions.
7. If the child's guardian is hesitant to file the counsellor/ PO to encourage by reiterating that confidentiality will be strictly maintained at all times and there will no legal cost involved, etc. The entire POCSO, 2012 Act advantages and procedure will be explained as far as possible to encourage the guardians to cooperate with the police.
8. Help from local NGOs and Community Based Organizations will be taken, depending on the situation.
9. Thereafter it will be the responsibility of the PVWC Counsellor and the concerned PO to follow up the matter jointly with the police and the judicial system, with the primary responsibility on the Counsellor, but, depending on the facts of the POs involvement at the time of the incident, he/ she will also have to play a pivotal role since his statement may be recorded. Having rapport in the area, he/ she may have to encourage community members to be witnesses/ give statements in support to strengthen the case.
10. Ensure that the police report every case of child sexual abuse to the concerned Child Welfare Committee.
11. The detailed intake sheet may be filled by the PVWC Counsellor at the earliest once the formalities of the case filing are completed.
12. The PVWC Counsellor to follow up the case till the order is passed including being present in court whenever the judge has set a date or as required. The PVWC coordinator and the Program Coordinator to be kept informed and they can give inputs and support required. The child's guardian also to be kept informed at every stage.

If the case has been reported after a significant time:

1. The PVWC Counsellor to talk to the guardian reporting the matter in detail and find out all the details of the incident and the sequence of events: when, where, who and how
2. The Counsellor to fill the intake sheet in detail
3. The Counsellor to request for permission to speak to the child.

4. If permission received the Counsellor to talk to the child alone or in the presence of her guardian (depending on the age of the child, sensitivity of the situation). This will be brief and only for the purpose of getting the necessary information. At this point the counsellor will realize if the particular child survivor requires additional future counselling or no (*guidelines for the same below*)
5. Once the Counsellor has provided the support required to the child and guardian and provided all the information as regards the law, the Counsellor to encourage the guardian not to delay further and file the case at the earliest. The guardian will also be informed that the law mandates the NGO to report even if they decide not to file a case.
6. Once the consent is received, the Counsellor will contact the nearest police station and ask a police official to come in civil clothes for taking the child's statement and thereafter the police will take the case forward for sending the child for medical etc.
7. The Counsellor will decide if the PVWC COs or the COs of the area need to accompany the family when the child is taken for the medical examination depending on the need of the particular child and family.
8. Thereafter it will be the responsibility of the PVWC Counsellor and the concerned PO to follow up the matter jointly with the police and the judicial system with the primary responsibility on the Counsellor.
9. The PVWC Counsellor to follow up the case till the order is passed, including being present on the court dates whenever required. The PVWC coordinator and Program Coordinator to be kept informed and they can give inputs and support whenever required. The child's guardian also to be kept informed at every stage.

Protocol related to counselling the child survivor

This will depend on the facts and circumstances of each case but factors to be considered include:

1. The impact of the incident on the child.

If the Counsellor is informed and believes that:

- the child is able to go about his or her daily schedule easily and without any problem.
- has been able to remove the incident from his or her mind and seems to have forgotten.

In these cases, it does not make sense to talk to the child and remind the child about the incident. However, the Counsellor can plan to take a session with the child – where she allows the child to draw (Art therapy) or do play therapy**.** This session can be taken any time after at the convenience of the child and the counsellor and will depend on the facts and circumstances of each case.

On the contrary, if:

- the child is very disturbed, has been unable to concentrate and perform his or her regular activities
- is unable to sleep or gets disturbing dreams,
- behaves peculiarly
- becomes withdrawn
- has developed phobias
- grades have dropped / does not want to go to school/ no interest in studies
- Becomes aggressive
- Talks about suicide

In case of the above, the counsellor has to ensure that the child receives counselling as top priority by arranging a private place to talk. Depending on the facts of the case, if required, a child will be referred to an expert child counsellor.

2. Age of the child
- If the child is very young (under five) then it is preferable to refer the child to a child guidance clinic/ expert child Counsellor.

As a result of involvement in supporting the case there is a backlash against SNEHA

1. The SNEHA PO/PVWC Counsellor will ensure that the Program Coordinator and the PVWC coordinator are informed;
2. Depending on the facts of the case PVWC team will help /guide regarding taking police help and support;
3. The PVWC team will also assist the other team to conduct meetings with the family and in the community as and when required;

II. Protocol for handling children in need of care and protection

A child in need of care and protection is defined as a child who:

- Resides with a person(s) who has threatened to harm them and is likely to carry out that threat, harmed other children and hence is likely to kill, abuse or neglect the child.
- Is mentally or physically disabled, or has an illness, terminal or incurable disease and has no one to provide and care for him/her.
- Has a parent or guardian deemed unfit or unable to take care of the child.
- Is an orphan, has no family to take care of him/her, or is a runaway or missing child whose parents cannot be located after a reasonable search period.
- Is being or is likely to be sexually, mentally, emotionally or physically abused, tortured or exploited.
- Is being trafficked or abusing drug substances.
- Is being abused for unthinkable gains or illegal activities.
- Is a victim of armed conflict, civil unrest, communal clashes or a natural disaster

Protocol to be followed:

- In case a CO comes across a case of any of the aforementioned cases of violation of child rights in the local community, the CO must report it to the Program Officer (PO).
- The PO will carry out an initial investigation (home visit, meeting with other community members and neighbours) with the support of the CO.
- Once the facts have been verified, the PO must inform the local police station as well as the Child Welfare Committee as per the Juvenile Justice (Care and Protection of Children) Act, 2006. Note: **Presenting a child before the Child Welfare Committee does not automatically mean that the child will be institutionalized. The CWC will assess each case and decide the course of action that is in the best interests of the child.**
- The PO will attend the hearing (if allowed) before the CWC and follow up on the case for further intervention as directed by the CWC.

Scenario 3 *If the CO finds out that a child is medically unfit and there is a danger to the life of the child since the family is unwilling to take the child for emergency treatment or if the child has been deprived of basic nutrition and the child's family is deliberately starving the child to death*

- The concerned CO will immediately report the matter to the PVWC Program Officer who will immediately report the matter to the concerned police station explaining that reporting the matter to the Child Welfare Committee may cause delay which may have a consequence on the life of the child. After ensuring emergency police support the PVWC team to ensure that the matter is subsequently followed up with the Child Welfare Committee,